Date: December 17, 2024

Dennis Enlayo/HR Manager

Jathnier Corporation

Subject: Dispute Letter for 13th-Month Pay

Dear Sir Dennis,

I hope this letter finds you well. I am writing to formally raise a concern regarding the computation of my 13th-month pay, which I believe is not properly aligned with my basic salary.

Throughout my tenure with the company, my basic salary has undergone several adjustments. While I do not have the exact dates of each appraisal, I can provide a general timeline of these changes as follows:

Initial Salary: ₱25,000

First Appraisal: Increased to ₱27,000 (duration of this rate is uncertain)

Second Appraisal: Increased to approximately ₱29,800 (this rate was in effect for about one year)

Third Appraisal: Increased to ₱35,000, which took effect around January of this year

Despite these salary adjustments, I have consistently received a 13th-month pay based on my initial salary of ₱25,000 for the past five years. This is a point of concern as it does not reflect my most recent basic salary, which I understand should be the basis for the computation of the 13th-month pay, as per labor regulations.

It is my understanding that a portion of my salary increase may have been classified as an "allowance" to minimize tax obligations, often referred to as a "tax shield." However, I believe this matter should be revisited, as the law requires that the computation of the 13th-month pay be based on my total basic salary.

All relevant records of my salary adjustments are documented in the PAN (Personnel Action Notice) files maintained by the HR Department. I kindly request that we review these records to ensure the proper computation of my 13th-month pay.

I trust that you will give this matter your prompt attention, and I am willing to provide any additional information or clarification needed to resolve this issue. Please let me know the next steps I should follow or if a formal discussion is required.

Thank you for your time and understanding. I look forward to your response.

Sincerely,

Ronan Sarbon

MIS-IT / IT Head